

IMPORTANT — READ CAREFULLY: This KOSLAB Enterprise License Agreement (the "Agreement") is a legally binding contract between KOSLAB PLT ("Licensor"), and the legal entity or individual identified in an executed Order Form, invoice, or registration record ("Licensee" or "Customer").

BY DOWNLOADING, INSTALLING, DEPLOYING, ACCESSING, OR USING THE SOFTWARE UNDER AN ACTIVE COMMERCIAL SUBSCRIPTION, CUSTOMER SIGNIFIES ITS ASSENT TO AND ACCEPTANCE OF THIS AGREEMENT. AN INDIVIDUAL ACTING ON BEHALF OF AN ENTITY REPRESENTS AND WARRANTS THAT THEY POSSESS THE FULL LEGAL AUTHORITY TO BIND THAT ENTITY TO THIS AGREEMENT. IF CUSTOMER DOES NOT AGREE TO ALL TERMS OF THIS AGREEMENT, CUSTOMER MUST NOT INSTALL, DEPLOY, OR USE THE SOFTWARE UNDER THIS COMMERCIAL GRANT, AND ANY USE SHALL INSTEAD REMAIN GOVERNED STRICTLY BY THE APPLICABLE PUBLIC LICENSE OR CEASE IMMEDIATELY.

1. DEFINITIONS

- a) **"Designated Deployment"** means the specific production, development, and testing cluster environments, named servers, virtual host nodes, container clusters, or host identifiers authorized and delimited in the applicable Order Form and pursuant to Section 2.
- b) **"Development Cluster"** means an isolated, non-production cluster used strictly by Customer's internal engineering personnel for software design, coding, feature configuration, and build verification.
- c) **"Licensed vCPU Capacity"** means the maximum cumulative count of virtual central processing units (vCPUs) or physical CPU processor cores allocated or made available to execute the Platform Core across authorized cluster instances, as specified in the Order Form.
- d) **"Platform Core"** means the proprietary orchestration layer, application code, integration modules, API endpoints, workflow engines, and documentation authored and owned by Licensor that constitute the combined work.
- e) **"Production Cluster"** means the primary operational cluster environment executing live workloads, serving production data, or handling end-user business transactions.
- f) **"Public License"** means the GNU Affero General Public License, Version 3 (AGPLv3), as published by the Free Software Foundation.
- g) **"Software"** means the combined platform and modules provided by Licensor, comprising the Platform Core, but strictly excluding standalone Third-Party Components as set forth in Section 6.
- h) **"Subscription Term"** means the active paid period during which Customer is authorized to operate the Software under this commercial grant, as defined in the applicable Order Form.
- i) **"Testing Cluster"** means an isolated, non-production cluster used solely for quality assurance (QA), regression testing, pre-release staging, integration validation, or disaster recovery drills, and never serving live user-facing production traffic.
- j) **"Third-Party Components"** means independent open source software packages, runtime services, container images, databases, or libraries authored by third parties (including those licensed under Apache 2.0, MIT, BSD, ISC, MPL, LGPL, GNU GPL, or other open source licenses) that are distributed alongside, orchestrated by, or integrated with the Software via network interfaces or standard system calls.
- k) **"vCPU"** means a single virtual central processing unit, thread, or logical processor core recognized, assigned, or accessible by the container runtime, virtual machine hypervisor, or operating system running the Platform Core.

2. DUAL-LICENSING STRUCTURE & COMMERCIAL GRANT

- a) **Dual-Licensing Model.** Customer acknowledges that the baseline source code of the Platform Core is publicly available under the terms of the Public License (GNU AGPLv3). Licensor, holding all necessary intellectual property rights and contributor permissions, offers this commercial Agreement as an alternative licensing channel to exempt Customer from the copyleft and source-disclosure obligations of the Public License during an active Subscription Term.

- b) **Commercial License Grant.** Subject to Customer's timely payment of all applicable subscription fees and continuous compliance with this Agreement, Licensor grants Customer a non-exclusive, non-transferable, non-sublicensable, worldwide right during the Subscription Term to:
- Install, configure, and execute the Software solely for internal business operations within the authorized **Licensed vCPU Capacity** and **Designated Deployments**.
 - Modify, extend, and integrate the Platform Core with Customer's internal proprietary systems without triggering the source-code disclosure, network interaction copyleft (Section 13), or attribution requirements of AGPLv3.
- c) **vCPU Licensing Metric & Cluster Scope.**
- Metric:** The commercial license is metered and licensed on a **vCPU capacity basis**. Subscription fees are calculated based on the total number of vCPUs provisioned or assigned to the Production Cluster.
 - Production Environment:** Customer may deploy the Platform Core across **one (1) Production Cluster** up to the aggregate Licensed vCPU Capacity purchased and designated in the Order Form.
 - Non-Production Allowances (Dev & Test):** For each licensed Production Cluster, Customer is granted the ancillary right to operate:
 - Up to **one (1) dedicated Development Cluster**; and
 - Up to **one (1) dedicated Testing Cluster**.
 - Capacity Caps on Non-Production Clusters:** The total computational capacity allocated to the Development Cluster and Testing Cluster shall each not exceed **twenty percent (20%) of the Licensed vCPU Capacity of the Production Cluster** (e.g., if the Production Cluster is licensed for 100 vCPUs, the Development Cluster may not exceed 20 vCPUs, and the Testing Cluster may not exceed 20 vCPUs).
 - Non-Production Usage Restrictions:** Development and Testing Clusters shall be used strictly for internal development, staging, QA, and validation purposes. Customer shall not run production workloads, serve live end-user network traffic, or process live transactional business data on non-production clusters.
- d) **Commercial License Restrictions.** Customer shall not:
- Deploy, run, or scale the Software beyond the authorized vCPU capacity, cluster counts, or environment limits specified in this Section 2 and the applicable Order Form without executing an upgrade or add-on order for additional vCPU capacity.
 - Sub-license, rent, lease, resell, or distribute the proprietary commercial distribution or access keys to any third party outside the express authorization of this Agreement.
 - Remove, alter, or obscure any proprietary copyright notices, legal disclaimers, or digital identifiers embedded in the Platform Core.

3. SUBSCRIPTION FEES, INVOICING, AND RENEWAL

- a) **Payment Obligations.** Customer agrees to pay the recurring subscription fees set forth in the applicable Order Form based on the agreed Licensed vCPU Capacity according to the billing cycle specified (e.g., monthly, annually).
- b) **Invoicing, Payment Terms & Cure Period.**
- Payment Window:** All invoices issued by Licensor are due and payable within **thirty (30) calendar days** from the invoice date.
 - Notice and 30-Day Cure Period:** If any invoice remains unpaid upon the expiration of the thirty (30) calendar day payment window, Licensor shall issue written notice of default to Customer. Customer shall have a period of **thirty (30) calendar days** following receipt of such written notice (the "**Cure Period**") to remit all overdue amounts in full.
 - Remedies Upon Default:** If Customer fails to cure the payment default prior to the expiration of the thirty (30) day Cure Period, Licensor reserves the right to immediately:
 - Suspend access to enterprise support, updates, security patches, and customer portal services;
 - Deactivate commercial license tokens, access keys, or validation credentials; and
 - Terminate the Commercial License Grant pursuant to Section 4.

4. TERMINATION, AUTOMATIC FALLBACK TO AGPLv3, AND REINSTATEMENT

- a) **Automatic Expiration and Fallback Trigger.** In the event that:
- The Subscription Term expires without an executed renewal;
 - Customer fails to cure a payment default within the thirty (30) day Cure Period specified in Section 3 (b); or
 - Customer terminates or cancels the commercial subscription, the commercial license grant **under Section 2 shall immediately and automatically terminate without requiring further legal notice from Licensor.**
- b) **Immediate Governance by AGPLv3.** Upon termination or expiration of the Commercial License Grant:
- Any continued installation, operation, hosting, network serving, or deployment of the Platform Core across any cluster (including Production, Development, and Testing environments) **shall immediately and automatically become governed exclusively by the terms and conditions of the GNU AGPLv3.**
 - Customer shall immediately become subject to all obligations imposed by AGPLv3, including but not limited to:
 - Network Copyleft (Section 13):** Making the complete Corresponding Source code of the Platform Core—including all modifications, extensions, scripts, and interface adaptations authored by or for Customer—freely available to all users interacting with the Software remotely over a computer network.
 - License Notices:** Retaining and distributing the full text of the GNU AGPLv3 and all required copyright and disclaimer notices.
 - Alternative to AGPL Compliance (Deprovisioning).** If Customer elects not to comply with the copyleft and source disclosure terms of the GNU AGPLv3 upon commercial termination, Customer must immediately:
 - Cease all execution and hosting of the Software;
 - Uninstall, dismantle, and delete all instances of the Platform Core across all environments (Production, Development, Testing, and all other nodes); and
 - Certify in writing to Licensor within thirty (30) days that all deployments have been decommissioned.
- c) **Reinstatement of Commercial License Grant.**
- Reinstatement Eligibility:** If the Commercial License Grant has terminated or fallen back to AGPLv3 due to non-renewal or uncured payment default, Customer may request reinstatement of the commercial subscription and its corresponding copyleft exemptions.
 - Conditions for Reinstatement:** Reinstatement shall be subject to Licensor's acceptance and the satisfaction of all of the following conditions by Customer:
 - Full Payment of Arrears:** Remittance of all outstanding overdue subscription fees accrued up to the date of default; and
 - Prospective Subscription Execution:** Execution of a new or renewal Order Form and full payment of subscription fees for an upcoming Subscription Term;
 - Legal Effect of Reinstatement:** Upon written confirmation of reinstatement and receipt of all required payments by Licensor:
 - The Commercial License Grant under Section 2 shall be restored prospectively for the new Subscription Term;
 - Access to enterprise maintenance, security updates, and SLA technical support under Section 7 shall be reactivated; and
 - Provided Customer maintained compliance with either the AGPLv3 or internal non-distribution during the lapse period, Licensor waives claims of commercial copyright infringement arising solely from the lapse, restoring proprietary dual-license protections.

5. INTELLECTUAL PROPERTY & TRADEMARK PROTECTION

- a) **Retention of Rights.** Licensor and its upstream licensors retain all right, title, interest, and intellectual property rights in and to the Platform Core, including all algorithms, architecture, interfaces, code, and documentation. No title or transfer of ownership is conveyed under this Agreement.
- b) **Customer Modifications.** Modifications made by Customer to the Platform Core during an active Subscription Term remain Customer's property, subject to Licensor's underlying copyright in the Platform Core. Upon transition to AGPLv3 under Section 4, such modifications become subject to the source disclosure requirements of AGPLv3 if the software continues to be executed and served over a network.
- c) **Trademark and Brand Asset Protection.** The trademarks, trade names, service marks, individual product logos, and branding of Licensor are the exclusive property of Licensor. This Agreement does not grant Customer any right, title, or license to use, display, or distribute Licensor's trademarks in connection with any deployment, modification, or redistribution of the Software. In the event of any commercial redistribution (under separate written consent or under the Public License), Customer must completely remove and replace all occurrences of Licensor's trademarks, trade names, and logos prior to distribution.

6. THIRD-PARTY COMPONENTS & SCOPE OF LICENSING

- a) **Scope of Combined Work.** The commercial license grant (Section 2) and the automatic AGPLv3 fallback provisions (Section 4) apply **strictly and exclusively** to the Platform Core authored and copyrighted by Licensor.
- b) **Independent Third-Party Services.** The deployment architecture may bundle, orchestrate, or interface with independent third-party open source services (e.g., containerized databases, caching layers, message brokers, runtime engines, or utility libraries) licensed under various upstream Open Source Software (OSS) or Free Software licenses.
- c) **Precedence of Upstream Open Source Licenses.**
 - i. Nothing in this Agreement shall be construed to alter, amend, restrict, supersede, or diminish Customer's rights and obligations under the respective upstream open source or free software licenses governing each independent Third-Party Component (including, without limitation, Apache, MIT, BSD, ISC, Mozilla Public License (MPL), GNU Lesser General Public License (LGPL), GNU General Public License (GPL), or any OSI-approved license).
 - ii. Each independent Third-Party Component remains governed strictly and exclusively by its applicable upstream open source license.
 - iii. This commercial Agreement does not sub-license, grant proprietary exclusivity over, or impose the AGPLv3 fallback obligations upon any separate Third-Party Component executing as an independent process, container, runtime dependency, or network service.
- d) **Architectural Independence.** The parties acknowledge and agree that Third-Party Components running in separate containers, virtual machines, discrete OS processes, or dynamic links communicating with the Platform Core via standard network protocols, REST APIs, gRPC, RPC, or IPC mechanisms constitute independent works and do not form a single derivative work with the Platform Core.
- e) **Attribution and Notice File.** Licensor shall provide a software bill of materials or third-party notice artifact identifying bundled third-party services, their copyright holders, and links to their respective upstream licenses.

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7. MAINTENANCE, SUPPORT & SERVICE LEVEL AGREEMENT (SLA)

- a) **Scope of Commercial Support.** During an active Subscription Term, Licensor shall provide maintenance, technical support, and Service Level commitments for the Platform Core as follows:
- b) **Maintenance Releases & Updates:** Licensor shall make commercially reasonable efforts to supply Customer with periodic bug fixes, performance improvements, security hotfixes, and minor or major software updates released during the Subscription Term.
- c) **Technical Incident Support:** Licensor shall provide remote technical support for incident triage, problem diagnosis, root-cause analysis, and configuration guidance regarding the standard operational use of the Platform Core. Support obligations are fulfilled through the provision of technical guidance, procedural instructions, standard documentation, bug fixes, updates, and workaround recommendations. Customer retains sole operational control of its infrastructure; Licensor shall not directly log into, access, operate, execute administrative commands within, or directly apply fixes, patches, or configuration changes to Customer's systems, live clusters, operating systems, or hosting environments.
- d) **Severity Levels and Initial Response Targets:** Support requests submitted through Licensor's designated ticketing portal or commercial support email shall be classified and acknowledged according to the following severity matrix:
 - i. **Severity 1 (Critical Outage):** Complete business-halting failure or total unavailability of the Production Cluster with no operational workaround. *Target Initial Response:* within **1 business hours** (or 16/5, or 24/7 if specified in Order Form).
 - ii. **Severity 2 (High Degradation):** Major software functionality is severely impaired or significant performance degradation affects operations, but critical operations remain partially viable. *Target Initial Response:* within **4 business hours**.
 - iii. **Severity 3 (Medium / Minor Impairment):** Non-critical software defects, partial feature impairment, or general configuration issues with an available workaround. *Target Initial Response:* within **1 business day**.
 - iv. **Severity 4 (Low / General Inquiry):** General questions, documentation clarifications, minor cosmetic issues, or feature requests. *Target Initial Response:* within **3 business days**.
- e) **Limitations and Exclusions of Support.** Standard subscription maintenance and SLA support are strictly limited to technical defect resolution and incident triage of the Platform Core. The following activities, services, and conditions are **expressly excluded** from standard technical support and SLA commitments:
 - i. **Direct Hands-On Remediation & System Administration:** Hands-on execution, running operational commands, deploying containers, performing manual database updates, applying code patches directly to customer infrastructure, or taking direct control of Customer's environments (all of which remain Customer's sole responsibility).
 - ii. **Modifications & Custom Extensions:** Debugging, patching, or supporting software builds modified, altered, or patched by Customer or any third party, or diagnosing issues arising from custom scripts, plugins, API adapters, or third-party extensions not authored and maintained directly by Licensor.
 - iii. **Capacity & Environment Non-Compliance:** Incidents occurring on unmetered, over-capacity, non-compliant, or unauthorized clusters exceeding the licensed vCPU allocations.
 - iv. **Infrastructure & Underlying Dependencies:** Problems stemming from Customer's underlying hardware, virtualization layers, hypervisors, cloud host instances, Kubernetes infrastructure, network routing, firewall rules, DNS configurations, operating systems, or external storage volumes.
 - v. **Standalone Third-Party Components:** Source-level patching, direct code maintenance, and engine debugging for independent upstream Third-Party Components (e.g., third-party database engines, cache stores, or external message brokers), which remain subject to upstream open source community release schedules.
 - vi. **End-of-Life (EOL) Versions:** Support for legacy versions of the Platform Core that have reached announced End-of-Life or End-of-Support milestones.

- vii. **Professional Services & Implementation Exclusions:** Standard support does not include consultative, hands-on, or bespoke engineering services. Any such services require a separately executed Statement of Work (SOW) and additional professional services fees, including, without limitation:
- **Initial Provisioning & Turn-Key Deployment:** End-to-end cluster setup, hands-on environment bootstrapping, CI/CD pipeline authoring, or infrastructure provisioning;
 - **Bespoke Development & Custom Connectors:** Writing custom code, tailored software features, custom API integrations, bespoke data pipeline connectors, or specialized workflow automations;
 - **Data Migration & Transformation:** Database schema design, data extraction, transformation, and loading (ETL), data migration from legacy systems, or custom backup restoration drills;
 - **Performance Optimization & Architecture Reviews:** Custom benchmarking, database query tuning, high-availability architecture design reviews, or infrastructure right-sizing;
 - **On-Site Engineering & Cutover Supervision:** On-site presence, dedicated embedded engineers, or live after-hours migration/go-live supervisory monitoring;
 - **Training & Change Management:** Formal classroom training, administrator certification workshops, end-user onboarding sessions, or custom organizational documentation creation; and
 - **Security Hardening & Penetration Test Remediation:** Bespoke compliance remediation, tailored SOC2/ISO audit evidence compilation, hands-on operating system hardening, or executing third-party penetration testing.
- viii. **Customer Obligations & Implementation Responsibility.** To receive support services under this Section 7, Customer must:
- Maintain sole operational custody of its infrastructure, and assume full and exclusive responsibility for testing, staging, approving, applying, and deploying any guidance, software patches, updates, configuration changes, or workarounds supplied by Licensor;
 - Designate qualified internal technical points of contact authorized to log support tickets and interface with Licensor's engineering team;
 - Provide reasonable diagnostic details, logs, environment manifests, and steps required to reproduce the reported issue; and
 - Promptly install critical security patches and maintenance updates released by Licensor.
- ix. **Cessation of Enterprise Support upon AGPLv3 Fallback.** Upon expiration or termination of the Commercial License Grant and transition to AGPLv3 under Section 4:
- All enterprise SLAs, guaranteed response times, private vulnerability disclosures, customer portal access, and dedicated support channels terminate immediately.
 - Software operated under the Public License is provided strictly on an **"AS IS"** basis, without ongoing maintenance, SLA commitments, or technical support of any kind from Licensor.

8. WARRANTIES, DISCLAIMERS & LIMITATION OF LIABILITY

- a) **Limited Commercial Warranty.** Licensor warrants that:
- i. During the active Subscription Term, the Software will perform substantially in accordance with the official documentation under normal operational conditions.
 - ii. For a period of thirty (30) days from initial delivery, any physical or digital media on which the Software is delivered will be free from material defects in manufacture. Customer's sole and exclusive remedy for breach of this media warranty is the replacement of the defective media or a refund of amounts paid specifically for the media.

- b) **Disclaimer of Regulatory & Operational Warranties.** EXCEPT AS EXPRESSLY PROVIDED IN SECTION 8.1, AND TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE SOFTWARE AND ALL COMPONENTS ARE PROVIDED "AS IS" WITHOUT WARRANTY OF ANY KIND, EXPRESS, STATUTORY, OR IMPLIED. LICENSOR EXPRESSLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. LICENSOR DOES NOT WARRANT THAT THE SOFTWARE WILL BE UNINTERRUPTED, ERROR-FREE, SECURE, ACCURATE, OR COMPLIANT WITH SPECIFIC INDUSTRY, LEGAL, OR REGULATORY REQUIREMENTS APPLICABLE TO CUSTOMER'S BUSINESS.
- c) **Limitation of Liability & Consequential Damages.**
 - i. **Exclusion of Consequential Damages:** TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, NEITHER LICENSOR, ITS AFFILIATES, NOR ITS LICENSORS SHALL BE LIABLE TO CUSTOMER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, EXEMPLARY, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF BUSINESS, LOSS OF DATA, OR SYSTEM DOWNTIME, ARISING OUT OF OR IN CONNECTION WITH THE USE OR INABILITY TO USE THE SOFTWARE, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.
 - ii. **Aggregate Monetary Cap:** IN NO EVENT SHALL LICENSOR'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, UNDER ANY LEGAL OR EQUITABLE THEORY (WHETHER IN CONTRACT, TORT, STRICT LIABILITY, OR OTHERWISE), EXCEED THE TOTAL FEES ACTUALLY PAID BY CUSTOMER TO LICENSOR FOR THE SPECIFIC SUBSCRIPTION UNDER THIS AGREEMENT DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO LIABILITY.

9. AUDIT AND VERIFICATION

- a) **Verification Rights.** During the Subscription Term and for sixty (60) days thereafter, Licensor may, upon reasonable advance written notice, verify Customer's compliance with the Licensed vCPU Capacity, cluster allocations, and non-production scope across all environments.
- b) **Cooperation & Metrics Reporting.** Customer agrees to provide cluster resource manifests, core allocation summaries, or automated license telemetry reasonably necessary to verify that:
 - i. The Production Cluster does not exceed the paid Licensed vCPU Capacity; and
 - ii. The Development and Testing Clusters each do not exceed twenty percent (20%) of the Production Cluster vCPU capacity.

10. GENERAL LEGAL PROVISIONS

- a) **Governing Law, Jurisdiction & CISG Exclusion.** This Agreement and any dispute or claim arising out of or related to it shall be governed by and construed in accordance with the laws of **Malaysia**, without regard to conflict of law principles. The parties expressly agree that the **United Nations Convention on Contracts for the International Sale of Goods (CISG)** shall not apply to this Agreement or to transactions executed under it.
- b) **Severability.** If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be enforced to the maximum extent permissible, and the remaining provisions of this Agreement (as well as the underlying Public License) shall remain in full force and effect.
- c) **Entire Agreement.** This Agreement, together with any executed Order Forms and the Third-Party Notice file, constitutes the complete and exclusive agreement between the parties with respect to the commercial licensing and dual-license governance of the Software, superseding all prior discussions, proposals, and agreements.

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SCHEDULE A: ORDER FORM TEMPLATE

PARTIES INFORMATION

Order Reference

Provider [PROVIDER] (Registration No. [PROVIDER_REGISTRATION_NO])
[PROVIDER_ADDRESS]
Representative Contact: [PROVIDER_REPRESENTATIVE_CONTACT]

Client [CLIENT] (Registration No. [CLIENT_REGISTRATION_NO])
[CLIENT_ADDRESS]
Representative Contact: [CLIENT_REPRESENTATIVE_CONTACT]

Date DD MMMM YYYY

INCORPORATED TERMS

This Order Form is issued pursuant to, and is governed by, the following documents (collectively, the “Agreement”). If the documents conflict, the following order of precedence applies:

1. This Order Form including the:
 - a. Specific Modifications And Overrides
 - b. Appendices
2. Standard Terms of Service at <https://koslab.org/agreements>
 - a. Training Terms of Service
 - b. Professional Services Terms of Service
 - c. Enterprise License Agreement
 - d. General Terms of Engagement

By executing this Order Form, the Parties acknowledges that they have read, understood, and agree to be bound by the Agreement in its entirety. This Order Form and the Agreement shall be governed by the laws of Malaysia.

SPECIFIC MODIFICATIONS AND OVERRIDES

1. None

ENTERPRISE LICENSE COVERAGE

Parameter	Specification / Authorized Value
Software Name & Edition	[Product Name]
Covered Components	[Components covered in support]
Initial Subscription Term	[Start Date, e.g., 2026-09-01] to [End Date, e.g., 2027-08-31]
Licensing Metric	Total Allocated vCPUs (Virtual Core Capacity)
Licensed Production vCPU Capacity	[e.g., 64 / 128 / 256] vCPUs allocated to (1) Production Cluster
Authorized Development Cluster	1 Cluster (Max 20% of Production vCPUs: [e.g., up to 12.8 / 25.6 / 51.2] vCPUs)
Authorized Testing Cluster	1 Cluster (Max 20% of Production vCPUs: [e.g., up to 12.8 / 25.6 / 51.2] vCPUs)
Total Aggregated Licensed vCPU Ceiling	[e.g., 89.6 / 179.2 / 358.4] vCPUs across all 3 environments
Billing Frequency & Total Fee	[e.g., Annual Upfront: \$XX,XXX / Monthly: \$X,XXX]
Payment Due Date & Cure Period	Invoices due within 30 calendar days of invoice date; 30 calendar day written cure period prior to suspension or AGPLv3 fallback trigger



IN WITNESS WHEREOF, the parties have executed this Agreement by their duly authorized representatives.

For and on behalf of Client

For and on behalf of Provider

Name:
Position:
Date:

Name:
Position:
Date:

SCHEDULE B: ORDER FORM TEMPLATE (PARTNER/RESELLER FULFILLMENT)

PARTIES INFORMATION

Order Reference

Provider	[PROVIDER] (Registration No. [PROVIDER_REGISTRATION_NO]) [PROVIDER_ADDRESS] Representative Contact: [PROVIDER_REPRESENTATIVE_CONTACT]
Partner / System Integrator (Bill-To Entity) <i>The entity commercially responsible for ordering and payment.</i>	[CLIENT] (Registration No. [CLIENT_REGISTRATION_NO]) [CLIENT_ADDRESS] Representative Contact: [CLIENT_REPRESENTATIVE_CONTACT]
Designated End Customer (Licensee / Entitlement Holder) <i>The entity granted the right to access and use the software.</i>	[END_CUSTOMER] (Registration No. [END_CUSTOMER_REGISTRATION_NO]) [END_CUSTOMER_ADDRESS] Representative Contact: [END_CUSTOMER_REPRESENTATIVE_CONTACT] Designated Admin Contact: [END_CUSTOMER_ADMIN_REP_CONTACT]
Date	DD MMMM YYYY

INCORPORATED TERMS

This Order Form is issued pursuant to, and is governed by, the following documents (collectively, the "Agreement"). If the documents conflict, the following order of precedence applies:

1. This Order Form including the:
 - a. Fulfillment Terms
 - b. Specific Modifications And Overrides
 - c. Appendices
2. Standard Terms of Service at <https://koslab.org/agreements>
 - a. Training Terms of Service
 - b. Professional Services Terms of Service
 - c. Enterprise License Agreement
 - d. General Terms of Engagement

By executing this Order Form, the Parties acknowledges that they have read, understood, and agree to be bound by the Agreement in its entirety. This Order Form and the Agreement shall be governed by the laws of Malaysia.

FULFILLMENT TERMS

1. **Commercial & Invoicing Terms**
 - a. **Invoicing Schedule:** Invoiced in full upon execution of this Order Form and entitlement provisioning.
 - b. **Independent Payment Obligation:** Partner's obligation to pay Licensor is absolute, unconditional, and not contingent upon Partner receiving payment from the End Customer ("pay-when-paid" clauses between Partner and End Customer are strictly non-binding on Licensor).
2. **Deployment & Support Routing**
 - a. **Entitlement Activation:** Software activation keys, portal access, and tenant credentials will be issued directly to the Designated Admin Contact of the End Customer.
 - b. **Support Model:** *(Select one)*
 - ☐ **Direct Support:** End Customer accesses Licensor's Support Desk directly.
 - ☐ **Partner-Led Support:** Partner handles front-line support for End Customer; Licensor provides backline escalation.
3. **License Grant & EULA Pass-Through**
 - a. The software licensed under this Order Form is granted solely for the internal business operations of the Designated End Customer.
 - b. Partner is not granted an operational license for internal use under this Order Form, except to the extent strictly necessary to deploy, configure, or administer the software on behalf of the End Customer.
 - c. Software use is governed by Licensor's End User License Agreement ("EULA") available at <https://koslab.org/agreements> or attached hereto.
 - d. Prior to delivery or activation, Partner warrants that it has provided the EULA to the End Customer, or that the End Customer will be required to accept the EULA via electronic click-through upon account initialization/portal login.
4. **Restrictions & Non-Transferability**
 - a. Subscriptions ordered herein are strictly dedicated to the Designated End Customer and cannot be transferred, resold, reassigned, or shared with any other client, affiliate, or third party without prior written authorization from Licensor.
 - b. Partner shall not pool, aggregate, or split entitlements across multiple end customers.
5. **Order Validity & Modifications**
 - a. This Order Form constitutes a binding contract between Licensor and Partner once signed by authorized representatives of both parties.
 - b. Any variations to the terms of this Order Form must be in writing and signed by both parties. Pre-printed terms on Partner's Purchase Order (PO) that conflict with or add to this Order Form shall be null, void, and of no legal effect.

SPECIFIC MODIFICATIONS AND OVERRIDES

1. None

ENTERPRISE LICENSE COVERAGE

Parameter	Specification / Authorized Value
Software Name & Edition	[Product Name]
Covered Components	[Components covered in support]
Initial Subscription Term	[Start Date, e.g., 2026-09-01] to [End Date, e.g., 2027-08-31]
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Total Aggregated Licensed vCPU Ceiling	[e.g., 89.6 / 179.2 / 358.4] vCPUs across all 3 environments
Billing Frequency & Total Fee	[e.g., Annual Upfront: \$XX,XXX / Monthly: \$X,XXX]
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IN WITNESS WHEREOF, the parties have executed this Agreement by their duly authorized representatives.

For and on behalf of Provider

For and on behalf of Partner

Name:

Position:

Date:

Name:

Position:

Date: